

Affidavit – Family law and child support proceedings

Federal Circuit and Family Court of Australia (Family Law) Rules 2021 - RULE 8.15

Filed in:

- ☒ Federal Circuit and Family Court of Australia
- ☐ Family Court of Western Australia
- ☐ Other (specify)

Type of proceedings:

- ☒ Family law proceedings
- ☐ Other (specify)

Filed on behalf of:

Full name: Heather Anne Cooke

COURT USE ONLY

Client ID

File number NCC3896/2023

Filed at

Filed on 31 May 2024

Court location 61 Bolton Street, Newcastle, NSW 2300

Court date

Name of person swearing this affidavit:

Heather Anne Cooke

Date of swearing 31 / 05 / 2024

Part A About the parties

APPLICANT 1

Family name (as used now)

Cooke

Given names (as required)

Heather Anne

RESPONDENT 1

Family name (as used now)

Cooke

Given names (as required)

Stephen Christopher

APPLICANT 2

Family name (as used now)

Given names (as required)

RESPONDENT 2

Family name (as used now)

Given names (as required)

What is the contact address (address for service) in Australia for the party filing this affidavit?

You do not have to give your residential address. You may give another address at which you are satisfied that you will receive documents. If you give a lawyer's address, include the name of the law firm. You must also give an email address.

C/- Delaney Roberts Family Lawyers, 274 Brunker Road

ADAMSTOWN

State NSW Postcode 2289

Phone 02 4952 3901

Lawyer's code

Email aroberts@delaneyroberts.com.au

Signature of person making this affidavit (deponent)

Signature of witness



Part B **About the independent children’s lawyer (if appointed)**

Independent children’s lawyer family name	Given names

Part C **About you (the deponent)**

Family name (as used now)	Given names
Cooke	Heather Anne

Gender	Usual occupation (if applicable)
☐ Male ☐ Female ☐ X	Cardiologist

What is your address?
You do not have to give your residential address if you are concerned about your safety. You may give another address at which you are satisfied that you will receive documents.

State	Postcode

Part D **Evidence**

- 1. I am the Applicant in these proceedings and the Respondent in the substantive proceedings.
- 2. I was born on 31 July 1978 and I am currently 45 years of age.
- 3. The Respondent is my estranged husband, Stephen Christopher Cooke (“**Stephen**”), born 27 October 1981 and currently 42 years of age.
- 4. In or about May 2012, Stephen and I began living together. We were married on 26 September 2012 and separated on a final basis on 17 November 2023.
- 5. There are two (2) children of our relationship:
 - i. Christian Finn Cooke (born 20 August 2014) (“**Christian**”), currently 9 years of age, and
 - ii. Joshua Finn Cooke, (born 27 January 2017) (“**Joshua**”), currently 7 years of age.
- 6. On 17 November 2023, Stephen and I separated with finality, and I left the former matrimonial home at 1/213 Morgan Street, Merewether (“**the Merewether property**”) and moved into a rental house where I currently live with the children.

Court Orders dated 11 April 2024

- 7. On 11 April 2024, Court Orders (“**the April Orders**”) were made by Consent in respect of property matters. The Orders provided that:
 - (a) the Merewether property must be listed for sale by 11 July 2024, including timeframes and procedural orders to assist with the sale process.
 - (b) Stephen was to have exclusive occupancy of the Merewether property, provided he complies with the sale orders and “*kept the property in a clean and in a fair and proper state of repair to settlement of the sale of the property.*”

Heather

[Signature]



- (c) I am to pay Stephen \$1,200.00 per week by way of spousal maintenance and \$50,000 by way of partial property settlement for his litigation funding.
- (d) the 703/1 Como Crescent, Southport QLD property ("**the Southport property**") was to be valued, including timeframes and guidance to facilitate that valuation.

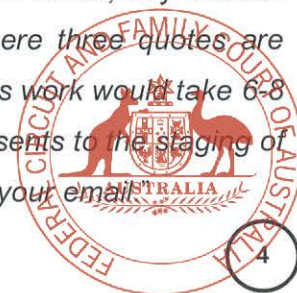
Stephen's non-compliance with the April Orders

8. Order 1(a) provided that I was to nominate three agents for Stephen's selection. On 11 April 2024, I proposed three agents for Stephen's selection. On 17 April 2024, Stephen selected Robinson Property ("**the Agent**") from the three agents I proposed. I will tender copies of our messages at the Interim Hearing. Following the agent's selection, the following incidents occurred:
- a. On 24 April 2024, the Agent attended the Merewether property. On 25 April 2024, the agent sent me an email which said *"Please find photos I took yesterday morning when I met the painter there. We need to get the entrance painted...Not sure if Stephen is the best person to leave the cleaning to. Needs a professional clean..."* Annexed and marked "HC1" is a copy of the Agent's email dated 25 April 2024 and a copy of the Agent's photographs.
 - b. On 1 May 2024, the Agent sent me an email which said, among other things, *"...the majority of works are inside including the entrance and sections of the ceiling where speakers have been removed along with some touch ups here and there. With regards to the entrance the painter and I thought it was best to paint all walls to freshen it up given it's the first section for the home you see and just painting the wall where the damage is would stand out. I met my handy man there at 8:50am and reminded Stephen about the same yesterday however he slept in and didn't hear us. Must be a very heavy sleeper. Handyman went back later. My main concern for you is the cleanliness of the property and I don't believe he will be able to do it which is odd given he wants top dollar. I think professional cleaners are needed."* I will tender a copy of the Agent's email at the Interim Hearing.
 - c. On 14 May 2024, I instructed my solicitors to send a letter to Stephen's solicitors regarding my concerns about the damage to the Merewether property and its state of disarray. That letter said, among other things, that Stephen was in breach of Order 3 of the April Orders as *"...he has failed to keep the property clean and in a fit and proper state of repair and that he has failed to allow access to the property as required."* Annexed and marked "HC2" is a copy of Delaney Roberts' letter dated 14 May 2024.
 - d. On 13-14 May 2024, Caslick Coatings painted the interior of the Merewether property due to the damage that was caused by the removal of a fixture wall light and the removal of wiring to an Alexa. I assume they were removed by Stephen as those fixtures were in place when I vacated the home. There are two invoices that remain unpaid in respect of Caslick Coatings. I will tender copies of those invoices at the Interim Hearing.
 - e. On 20 May 2024, I paid a further \$550.00 to Caslick Coatings to enable the area outside of the home that was rusted to be painted. I will tender the invoice and evidence of the payment at the Interim Hearing.



- f. On 20 May 2024, Stephen's solicitor sent a letter saying among other things, that Stephen would prefer to use Saltwater ("Salt") as the real estate agent as Stephen had concerns that the Agent was not impartial. Their letter included *"Our client has also learn that Mr Flook is a patient of Dr Rohan Bhagwandeem, a close work friend and colleague of your client. One of the agents manages your client's current rental property. Our client is concerned about the impartiality of the selection process and suggests that the agent's neutrality, which was intended to be ensured through the selection process, has been compromised."* The letter also advised that Stephen had cleaned up the property. Annexed and marked "HC3" is a copy of Ramsden Family Lawyers' letter dated 20 May 2024.
- g. On 23 May 2024, my solicitors responded to Stephen's solicitors advising that Stephen's previous selection of the Agent is binding and refuted that he lacks impartiality. The letter also sought payment by Stephen for the invoices deposited above at paragraph 8d and an invoice from Armstrong Property Maintenance for \$240.00 on account for the necessary work they had to complete due to Stephen's refusal. I. Annexed and marked "HC4" is a copy of Delaney Roberts' letter dated 23 May 2024 and a copy of Armstrong Property Maintenance's invoice dated 21 May 2024.
- h. On 25 May 2024, the Agent informed me that despite the Agent arranging for a cleaner to attend the Merewether property on 28 May 2024 and the photographer booked for 29 May 2024, Stephen did not answer their multiple phone calls or provided authority to proceed.
- i. On 28 May 2024, I contact the Agent via email enquiring if the cleaner's attended the Merewether property. The Agent responded via email *"No he cancelled them. Told me he was happy with how clean it was."*
- I will tender copies of the email exchange referred to at paragraphs 8h and 8i.
- j. On 28 May 2024, the Agent phoned me and said words to the effect of *"I have spoken to Stephen earlier today and he told me that you would have to take him back to Court to get any further progress on the sale."*
- k. On 29 May 2024, Stephen's solicitors sent an email which included a request for further works to be undertaken to the Merewether property that were suggested by Salt. The request was:
- *"Painting and the exterior of the home needs attention with painting, and repair of some rotting. Stephen discussed this with Mr Flook who said he would speak with someone about this.*
 - *Staging (or styling) of front balcony and adjacent room."*
- I will tender a copy of this email at the Interim Hearing.
- l. On 29 May 2024, my solicitors responded to that request as follows:

"Our client does not consent to the outside building works. As the title is Strata, any outside proposed building works require a special body corporate meeting where three quotes are proposed and one selected. Our client was informed by the Agent that this work would take 6-8 weeks to be complete. These timeframes are not feasible. Our client consents to the staging of the front balcony and adjacent room and the payment terms proposed in your email."



The letter also included a request for the property to be professionally cleaned as recommended by the agent. Annexed and marked "HC5" is a copy of Delaney Roberts' letter dated 29 May 2024.

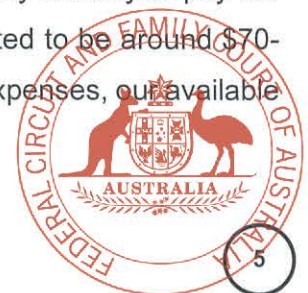
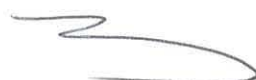
m. At the date of signing this affidavit, Stephen has not responded to that letter.

9. Order 1(e) provides that Kent Conveyancing ("**KC**") are to act as conveyancer in respect of the sale of the Merewether property and in that regard, Stephen and I was to instruct them to act by 18 April 2024. Stephen only instructed them to act on 29 May 2024, despite numerous follow-up requests by Delaney Roberts (see letter annexed at "HC2" which attached two emails from KC dated 9 May and 13 May 2024 confirming that Stephen had not provided his instructions).

The Merewether Home Loan & Spousal Maintenance

10. On 10 June 2024, the Merewether home loan (BSB: 037 173, account number 21-608) which at the date of signing this affidavit has \$596,828.60 owing, will reach the end of its fixed interest period (1.8% per annum) and increase to 6.2% per annum. This will result in an increase to the monthly home loan repayments of approximately \$2,000 per month. The April Orders provide that I am solely responsible for the home loan repayments.
11. On 23 May 2024, I instructed my solicitors to propose that Stephen and I jointly approach Westpac and request that the home loan repayments are put on hold pending sale of the property. This request was included in Delaney Roberts' letter of 23 May 2024 and annexed at "HC4".
12. On 29 May 2024, Stephen's solicitors responded saying "*We note your comments about the fixed loan coming to an end. It is only one of three loans. Is it proposed to cease payments on all three loans? Stephen requires that your client meet her obligations under the Orders and continue making all payments.*" This email is tendered at paragraph 8k.
13. On 29 May 2024, Delaney Roberts responded with "*Our client is unable to maintain the costs of all three home loans as well as \$1,200.00 per week Spousal Maintenance to your client. As the home will be listed for sale shortly, our client proposes that the parties jointly approach the bank to arrange that, pending settlement of the sale, all three (3) loan repayments are put on hold.*" This request was included in Delaney Roberts' letter annexed at "HC5".
14. At the date of signing this affidavit, my solicitors have not received a response to that request.
15. The April Orders include that I am to pay Stephen \$1,200.00 per week by way of spousal maintenance. I have applied for the decrease of the maintenance Order because there has been a substantial change to my financial circumstances. As outlined in the Financial Statement filed by me with this Application, my expenses exceed my weekly income by approximately \$518. This will be further exceeded when the fixed interest terms end. The following has also impacted my ability to maintain the maintenance Order, and my other expenses:

- (a) I have had to use business funds to cover family expenses, resulting in my inability to pay the BAS for the first quarter of the 2024-2025 financial year, which is estimated to be around \$70-75K. Despite putting approximately \$50K in cash to maintain the family's expenses, our available funds have decreased from \$185K to \$135K since 11 April 2024.



Page 6 of 62

I swear the contents of this affidavit are true

Place Adamstown Date 31 / 05 / 2024

Tayleh Soames
Full name of witness (please print)

This affidavit was prepared / settled by ☐ deponent/s
☒ lawyer

ROB5334090

PRINT NAME AND LAWYER'S CODE



IN THE FEDERAL CIRCUIT AND
FAMILY COURT OF AUSTRALIA
AT NEWCASTLE

No. NCC3896/2023

IN THE MARRIAGE OF

STEPHEN CHRISTOPHER COOKE

Applicant

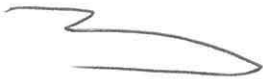
and

HEATHER ANNE COOKE

Respondent

ANNEXURE SHEET

This is the document referred to as Annexure **HC1** in the affidavit of **HEATHER ANNE COOKE** affirmed at Adamstown on 31 May 2024 before me Tayleh Soames


.....
Tayleh Soames

Solicitor
Qualification



----- Forwarded message -----

From: Mike Flook <Mike@robinsonre.com.au>

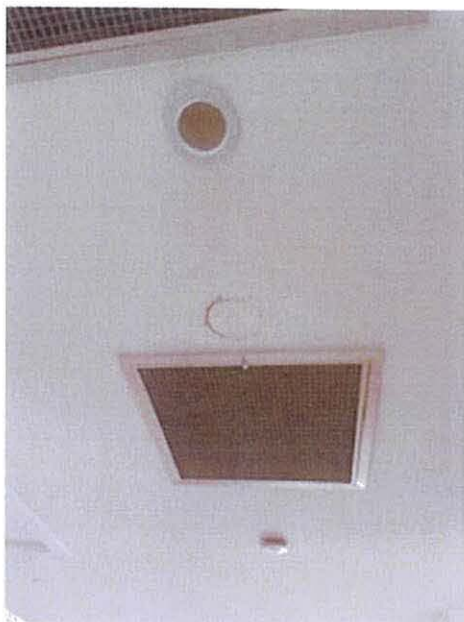
Date: Thu, Apr 25, 2024 at 9:46 AM

Subject: 213 Morgan St

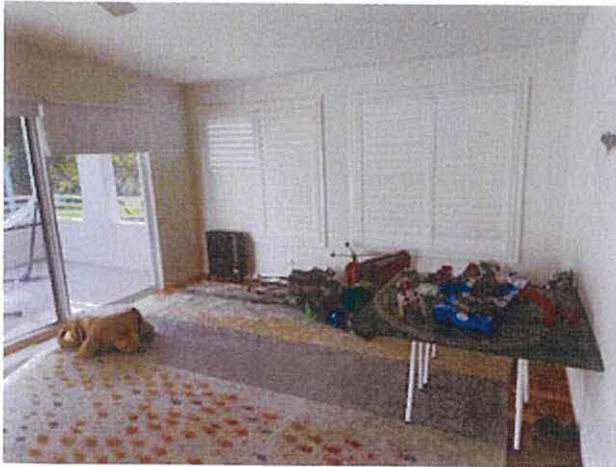
To: Heather Cooke <heather111cooke@gmail.com>

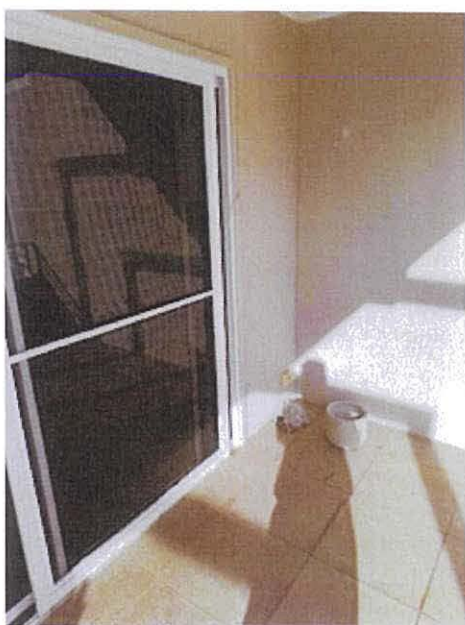
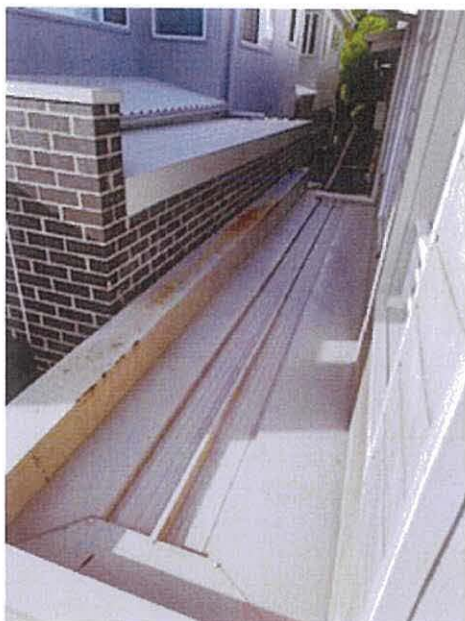
Morning Heather please find photos I took yesterday morning when I met the painter there. We need to get the entrance painted as well as the external flashing and some touch ups here and there. I'm meeting my handyman man there on Tuesday morning. Not sure if Stephen is the best person to leave the cleaning to. Needs a professional clean and I can organise that as well. Will come back to you once my painter and handyman come back to me. Enjoy your day.











Sent from my iPhone



IN THE FEDERAL CIRCUIT AND
FAMILY COURT OF AUSTRALIA
AT NEWCASTLE

No. NCC3896/2023

IN THE MARRIAGE OF

STEPHEN CHRISTOPHER COOKE

Applicant

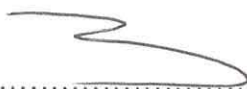
and

HEATHER ANNE COOKE

Respondent

ANNEXURE SHEET

This is the document referred to as Annexure **HC2** in the affidavit of **HEATHER ANNE COOKE** affirmed at Adamstown on 31 May 2024 before me Tayleh Soames


.....
Tayleh Soames

Solicitor
Qualification





DELANEY ROBERTS

SPECIALIST FAMILY LAWYERS

Our Ref: ALR:ALR:13629
Your Ref: Jacqueline Turner

14 May 2024

Clarity Lawyers
T&G Building
Level 4, Suite 4A 45 Hunter Street
NEWCASTLE NSW 2300

By Email only: j.turner@claritylawyers.com.au

Dear Colleagues

**Re: Cooke & Cooke
1/213 Morgan Street, Merewether**

We refer to the above matter.

We are instructed that the property at 1/213 Morgan Street, Merewether is in a very poor condition and state of repair. This was reported to our client by Mr Michael Flook, the real estate agent appointed on the sale, who has recently viewed the property. Mr Flook has provided our client with photos, which are attached, of damage to the property and showing the property in a significant state of disarray. We are instructed that none of these issues existed at the time our client vacated the property.

We note the following:

1. There is significant damage to the gyprock in the front hall, presumably as a result of your client removing a wall light that had multiple fixings and where he has not had the damage repaired.
2. There is damage to the ceiling where your client has pulled out wiring and not repaired the damage caused.
3. The surfaces in the kitchen and main living room are strewn with wires and devices; the floor of the second living area is also covered with computerware, wires and rubbish.
4. There are loose handles and hinges throughout the home, and the fixings for a cabinet attached to the wall are coming loose, creating a safety risk.
5. The pavers on the verandah and rear patio are coated in filth.

SYDNEY | NEWCASTLE | ADAMSTOWN

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We have
Accredited Specialists
in Family Law



MEMBER OF
THE LAW SOCIETY
OF NEW SOUTH WALES

THE LAW SOCIETY OF NSW
PROFESSIONAL
STANDARDS SCHEME



6. The garden is overgrown and unkempt and appears that it has not been tended to for several months.
7. Your client has performed illegal electrical works to the property, which require approval from a qualified Electrician before the property is marketed for sale.

Mr Flook has also recommended that the house, exterior areas and garden be tended to by professionals and informed our client that he "can't show a house like that." Mr Flook has also sent our client an email dated 25 April 2024 in which he states, "Please find photos I took yesterday morning when I met the painter there. We need to get the entrance painted...Not sure if Stephen is the best person to leave the cleaning to. Needs a professional clean..." We attach a copy of the said email for your attention together with the photos taken by Mr Flook.

On 1 May 2024, our client received an email from Mr Flook a copy of which is attached. Mr Flook states as follows:

"...the majority of works are inside including the entrance and sections of the ceiling where speakers have been removed along with some touch ups here and there. With regards to the entrance the painter and I thought it was best to paint all walls to freshen it up given it's the first section for the home you see and just painting the wall where the damage is would stand out. I met my handy man there at 8:50am and reminded Stephen about the same yesterday however he slept in and didn't hear us. Must be a very heavy sleeper. Handyman went back later. My main concern for you is the cleanliness of the property and I don't believe he will be able to do it which is odd given he wants top dollar. I think professional cleaners are needed."

We refer to the Orders dated 11 April 2024 and particularly Order 3 which provides as follows:

"3. That pending settlement of the sale, the Applicant Father shall have exclusive occupancy of the Merewether Street Property provided that he does all acts and things necessary to allow access to the property to the real estate agent as requested by the real estate agent, tradespeople and any prospective purchases, and to keep the property clean and in a fit and proper state of repair to settlement of the sale of the property."

We note that your client is in breach of this Order in several respects, namely that he has failed to keep the property clean and in a fit and proper state of repair and that he has failed to allow access to the property as required.

Your client has emailed our client informing her that she is required to pay for any works to the property. We note that your client is mistaken and are unsure as to why he is of such understanding. Order 3 of the Orders dated 11 April 2024 places the obligation on your client to clean and maintain the property pending settlement of the sale. Given that his exclusive occupancy is conditional upon his adherence to this requirement, in the event that professionals, as recommended by Mr Flook, are not engaged, and paid for, by your client to clean and repair these issues within the next 14 days, we are instructed to file an Application in a Proceeding to remove your client from the property so that our client can



attend to these issues and shall seek reimbursement from your client for the costs of the works together with legal costs against your client on an indemnity basis.

There is also rust in the roof and bird mess on the sky light. Mr Flook has also advised that these issues ought to be rectified to obtain the best price for the house. Our client is not unreasonable and accepts that these are longstanding issues and therefore proposes that she arrange for and pay for the repairs at first instance, with such costs to be reimbursed to our client from the proceeds of sale on settlement. Please confirm that your client is agreeable to this course of action.

We refer to Order 1(e) of the Orders dated 11 April 2024 which states as follows:

"1(e). The parties are to instruct Kent Conveyancing...in relation to the sale to prepare a Contract for Sale within two (2) weeks of the appointment of the real estate agent..."

We are instructed that your client has failed or refused to instruct Kent Conveyancing in accordance with Order 1(e). We attach emails dated 9 May and 13 May 2024 from Kent Conveyancing regarding this issue. We note that your client is also in breach of Order 1(e). In the event that your client has not provided such instructions to Kent Conveyancing within seven (7) days hereof, our client shall file an Enforcement Application in this respect, again seeking costs on an indemnity basis.

Please provide us with the following written confirmation within seven (7) days:

1. That your client accepts responsibility for the performance and cost of the cleaning, repairs and maintenance works to the property, as set out at paragraphs 1 to 7 on pages 1 and 2 herein,
2. That your client has arranged such cleaning, repairs and maintenance works to the property through licensed contractors as recommended and arranged by Mr Michael Flook, with such works to be performed to the property at your client's cost within 14 days thereafter,
3. That your client agrees to our client arranging and paying for the works to the roof and skylight and will allow access to tradespeople as required, with the costs of such works to be reimbursed to our client from the proceeds of sale on settlement, and
4. That your client has provided instructions to Kent Conveyancing to prepare a Contract for Sale,

failing which we are instructed to file proceedings to enforce these matters including to immediately remove your client from occupying the property.

We look forward to hearing from you.



Yours faithfully
Delaney Roberts Family Lawyers



Anna Roberts
Director, Solicitor & Family Dispute Resolution Practitioner
BComn LLB GradDipLegPrac
M.AppLaw (Family Law) GradDip (FDRP)
email: aroberts@delaneyroberts.com.au
phone: 02 4952 3901

Encl.



Anna Roberts

From: Anna Roberts
Sent: Monday, 13 May 2024 7:10 PM
To: Anna Roberts
Subject: FW: Painting Quote - 1/213 Morgan St, Merewether

----- Forwarded message -----

From: Mike Flook <Mike@robinsonre.com.au>
Date: Wed, 1 May 2024, 5:47 pm
Subject: Re: Painting Quote - 1/213 Morgan St, Merewether
To: Heather Cooke <heather111cooke@gmail.com>

Leave that with me, the majority of the works are inside including the entrance and sections of the ceiling where speakers have been removed along with some touch ups here and there. With regards to the entrance the painter and I thought it was best to paint all walls to freshen it up given it's the first section of the home you see and just painting the wall where the damage is would stand out. I met my handy man there at 8.50am today and reminded stephen about the same yesterday however he slept in and didnt hear us. Must be a very heavy sleeper. Handyman went back later. My main concern for you in the cleanliness of the property and I don't believe he will be able to do it which is odd given he wants top dollar. I think professional cleaners are needed.. Talk soon
Sent from my iPhone



Anna Roberts

From: Anna Roberts
Sent: Monday, 13 May 2024 7:11 PM
To: Anna Roberts
Subject: FW: Contract for sale of Morgan St

----- Forwarded message -----

From: Conveyancing Assistant <conveyancingassistant@kentconveyancing.com.au>
Date: Thu, 9 May 2024, 11:46 am
Subject: RE: Contract for sale of Morgan St
To: Heather Cooke <heather111cooke@gmail.com>

Hi Heather

We are still awaiting the return of Stephens instructions,

Once we have those we will send him all relevant paper work.

I will chase him up again today.



Meagan Burke

Conveyancing Concierge

KENT Conveyancing



Anna Roberts

From: Anna Roberts
Sent: Monday, 13 May 2024 7:12 PM
To: Anna Roberts
Subject: FW: Cooke Proposed Sale

----- Forwarded message -----

From: **Conveyancing Assistant** <conveyancingassistant@kentconveyancing.com.au>
Date: Mon, 13 May 2024, 4:10 pm
Subject: Cooke Proposed Sale
To: Mrs Heather Anne Cooke (Vendor) <heather111cooke@gmail.com>

Hi Heather

Sorry for the delay getting back to you.

Confirming no response from Stephen today, left a voicemail followed up with an email.



Meagan Burke

Conveyancing Concierge

KENT Conveyancing



02 4941 7474

0481 589 927

conveyancingassistant@kentconveyancing.com.au

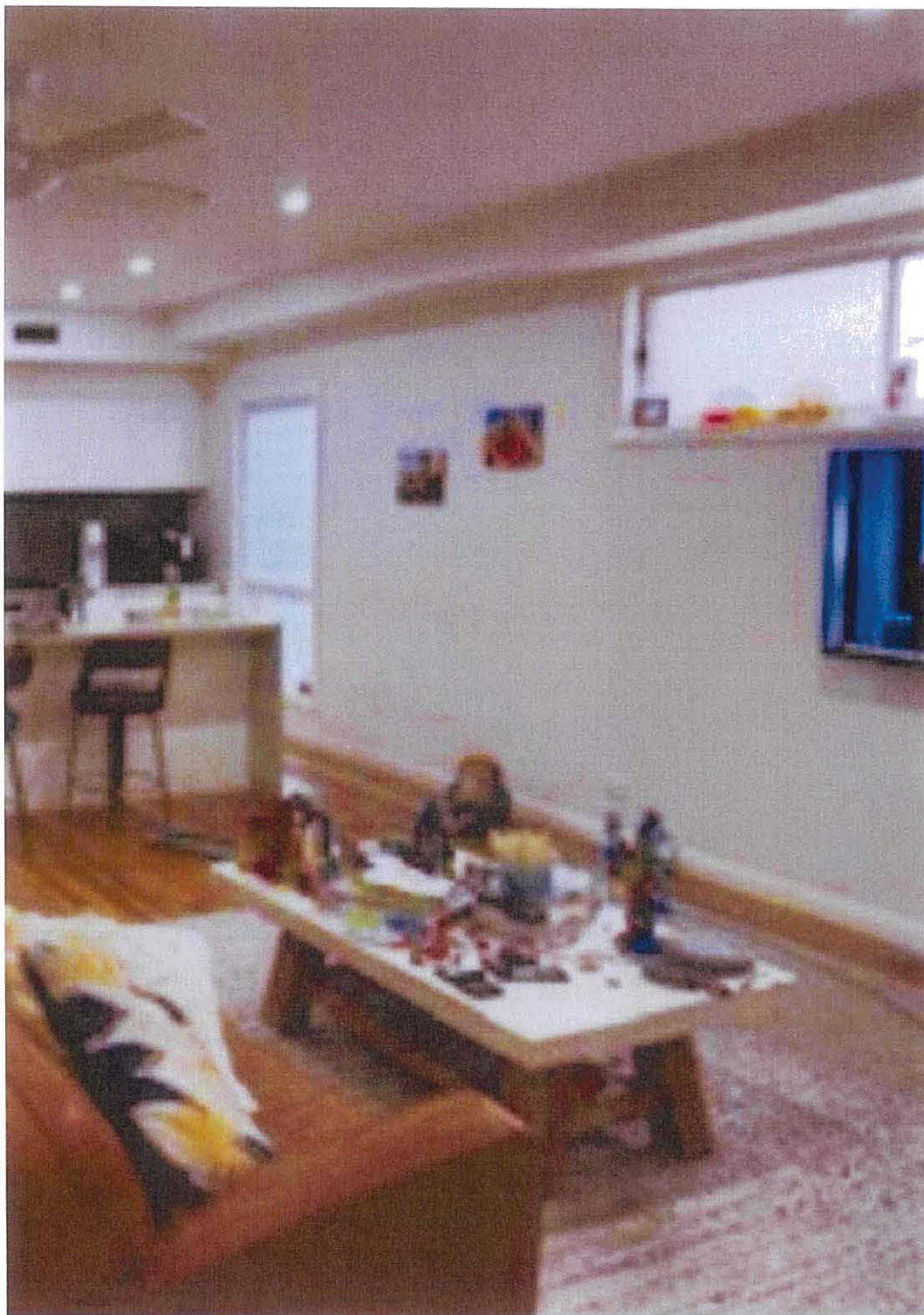




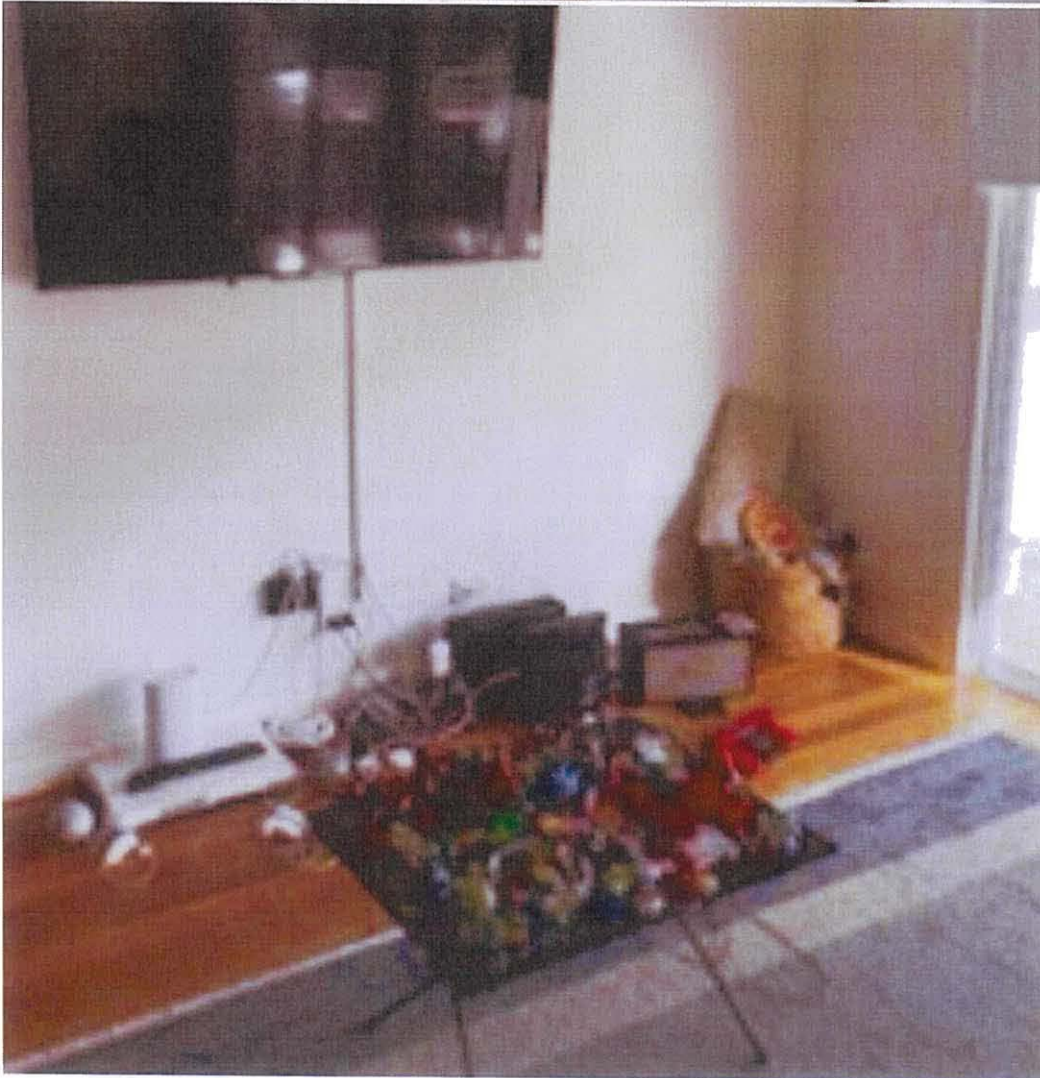
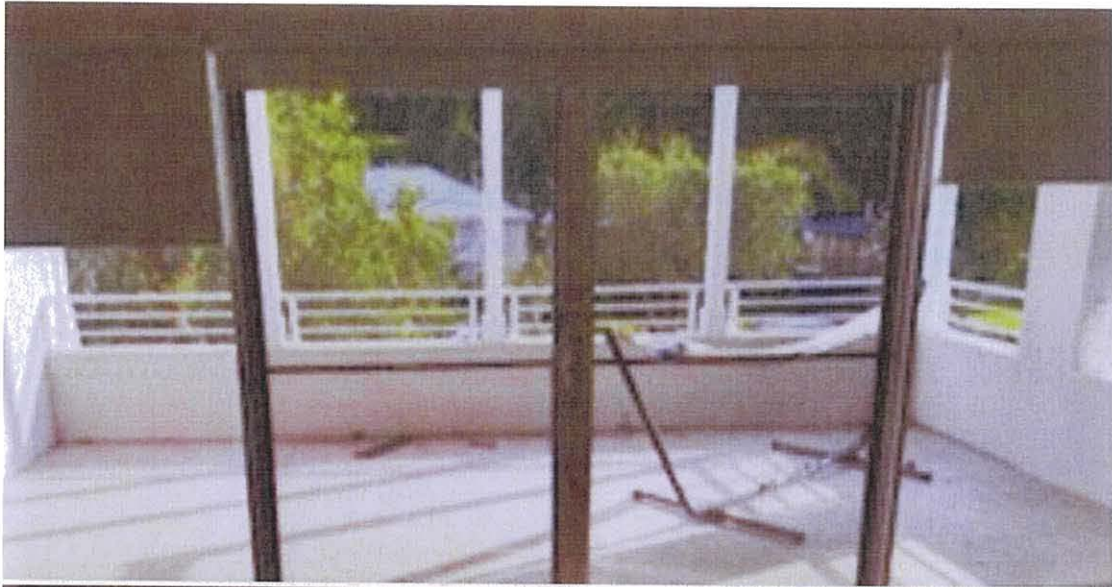














IN THE FEDERAL CIRCUIT AND
FAMILY COURT OF AUSTRALIA
AT NEWCASTLE

No. NCC3896/2023

IN THE MARRIAGE OF

STEPHEN CHRISTOPHER COOKE

Applicant

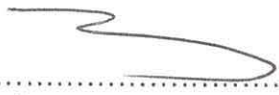
and

HEATHER ANNE COOKE

Respondent

ANNEXURE SHEET

This is the document referred to as Annexure **HC3** in the affidavit of **HEATHER ANNE COOKE** affirmed at Adamstown on 31 May 2024 before me Tayleh Soames


.....
Tayleh Soames

Solicitor
Qualification





Our Ref: RR:MS:R240096

20 May 2024

Delaney Roberts Specialist Family Lawyers
PO Box 206
Adamstown NSW 2289

Dear Colleagues

COOKE COOKE & COOKE - FAMILY LAW MATTER COOKE

Dear Colleagues

We have received instructions from Mr Stephen Cooke.

He had provided us with a copy of the interim parenting orders of 23 April and interim property orders of 11 April 2024.

In respect of the implementation of the interim property orders:

Conveyancer

1. Kent Conveyancing is agreed as the agent.

Agent

2. Our client chose Robinson Property from the list of three agents nominated by your client, under the presumption that the agents would be independent of both parties and would communicate transparently with both sides. Mr. Flook arranged a time to inspect the property for the first time, advising our client that he should attend as soon as possible. Our client informed Mr. Flook that he would like to tidy the house beforehand. However, Mr. Flook reassured our client that there was no need for that for the initial visit.

Mr. Flook did not inform our client that he would be taking photos or providing a report unilaterally to your client, but both these actions occurred. This has led our client to interpret the situation as being critical of him and raising concerns about Mr. Flook's impartiality. Furthermore, your client has relied on an email sent unilaterally by Mr. Flook to make threats regarding our client vacating the property.

Our client has also learn that Mr Flook is a patient of Dr Rohan Bhagwandeem, a close work friend and colleague of your client.

SYDNEY

BRISBANE

GOLD COAST

T 1300 749 709

E sydney@ramsdenlaw.com.au | W ramsdenfamilylaw.com.au

A Level 6, 15 Castlereagh Street, Sydney, NSW, 2000

ABN 11 159 606 729

Liability limited by a scheme approved under Professional Standards Legislation



One of the agents manages your client's current rental property. Our client is concerned about the impartiality of the selection process and suggests that the agent's neutrality, which was intended to be ensured through the selection process, has been compromised.

3. Given the above our client would prefer to use Saltwater as agents (being one of the other agents proposed by your client.
4. Our client requires that the agent be jointly instructed to send all email communication to both clients simultaneously, and that they take no steps to organise tradespeople without the clear agreement of both of our clients including agreement as to how cost are to be borne.

Ensuring the property is in a good state for marketing

5. Your letter of 14 May raises matters raised by Mr Flook being:
 - a. Your para 1. This was a loose light fitting. This fitting and the gyprock has now been repaired and we attach photos.
 - b. Your para 2. This was wiring from a speaker. Our client has arranged and paid an electrician to attend to this. We attach photos and invoice from the electrician in respect of work done.
 - c. Your para 3. The wires and devices are those of our client's computer and the boys devices. These have of course been tidied.
 - d. Our client has checked all handles and hinges.
 - e. Our client has used a pressure washer to clean these surfaces.
 - f. Our client has attended to the garden and will continue to do so until the sale.
 - g. See para b above.
6. Mr Flook arranged a painter without our client's agreement as to the work to be done or the costs. We are instructed that the invoice is \$3,300. This work was for normal and pre existing wear and tear. It is appropriate that, in the usual way, that the costs of this be shared equally. As with the advertising costs (see Order1d), our client ask that this be done on the basis of your client paying in the first instance.

As discussed, going forward, the agent should be jointly instructed to send all communications to both parties and to obtain agreement from both parties as to further work and the payment thereof.

7. Our client will clean the mess from the skylight, and this avoid costs for both parties.

Valuation Southport



8. Our client is agreeable to SLR Valuations providing the Southport valuation. Would you like to prepare a draft joint letter of instructions or would you prefer we do?

Mediation.

9. Paragraph 13 notes the parties intention to attend private mediation within 3 months – that is, 11 July. Our client wishes to ensure both parties have all information and documents they need to make good decisions as mediation. We shall write to you shortly in this respect. The mediator should not be booked until both parties have the documents they need from the other.

Yours faithfully

RAMSDEN FAMILY LAW

MATTHEW SHEPHERD

Special Counsel

Contact: Matthew Shepherd

Email: mshepherd@ramsdenlaw.com.au

Office Line: 1300 749 709

Document ID: 71299



Photos re house in good condition



71383





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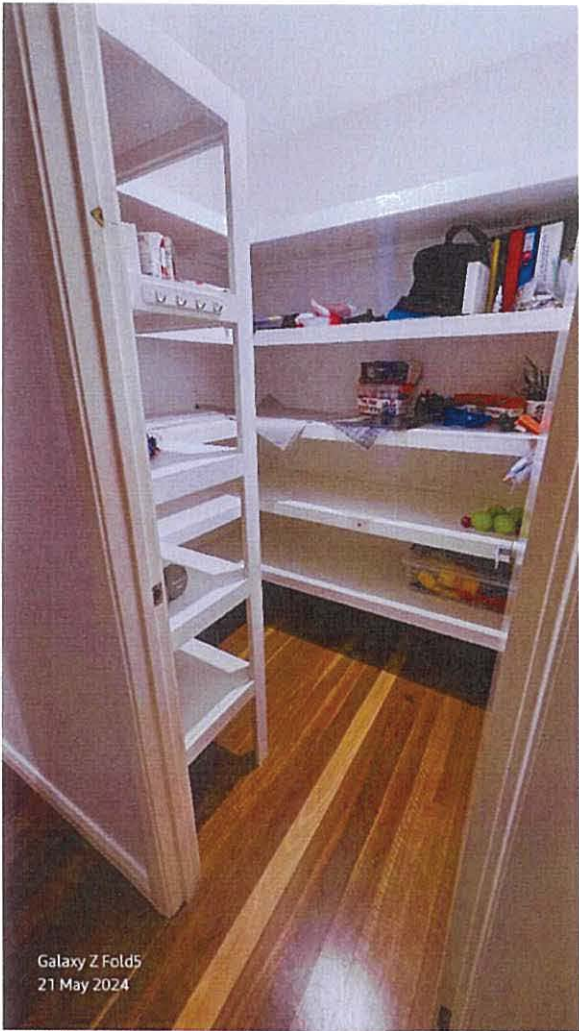
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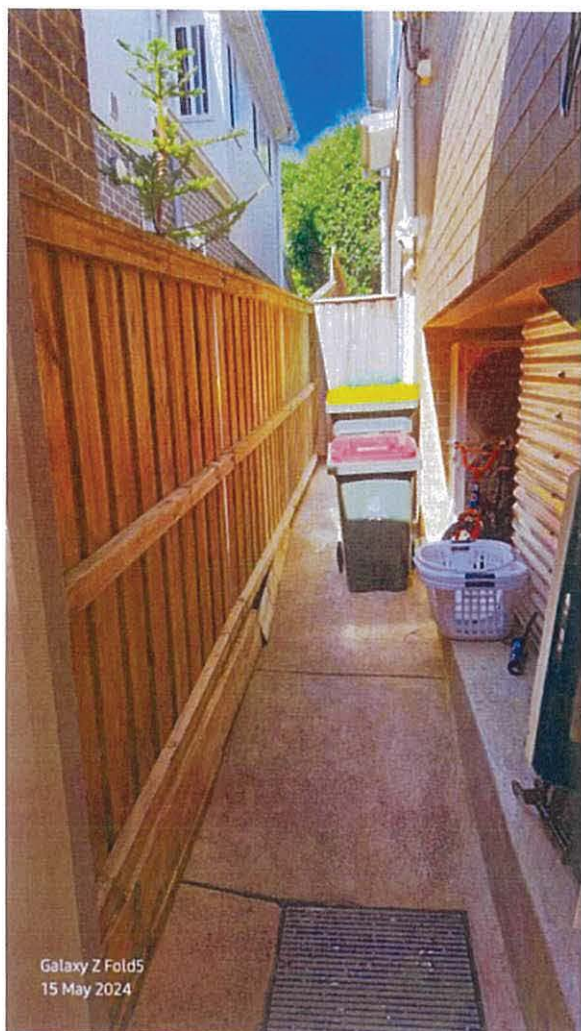






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Newage Air

Unit 4 - 301 Hillsborough Road
Warners Bay NSW 2282



Tax Invoice

(02) 4956 5888

Tax Invoice No.: 00043050

A.B.N. 93 089 750 694

Gold Licence: 183798C
Refrigerant Handling Licence: AU 34190

Stephen Cooke
1/213 Morgan Street
MEREWETHER NSW 2291

Stephen Cooke
1/213 Morgan Street
MEREWETHER NSW 2291

0412 846 712

Sales Person	Purchase Order	Terms	Date of Invoice
Robert Lewis	53929	Net 7	16/05/2024
1	Electrical	\$250.00	\$250.00 GST
Technician Notes: Checked over all wiring and switches. A few minor repairs and install two way switching for stair lighting			

Date of Install

16/05/2024

Bank Details:
BSB: 082-514
Account Number: 476 865 034
Account Name: Newage Air Conditioning & Refrigeration Pty Ltd
Visit us: www.newageair.com.au

\$250.00	Sub Total
\$22.73	GST
\$250.00	Total
\$0.00	Deposit
\$250.00	Balance



Gmail - Electrical inspection and works.

<https://mail.google.com/mail/u/2/?ik=d1835af931&view=pt&search=a...>



Stephen Cooke <stephencooke.c@gmail.com>

Electrical inspection and works.

Electrical <electrical@newageair.com.au>
To: "stephencooke.c@gmail.com" <stephencooke.c@gmail.com>

Mon, May 20, 2024 at 4:25 PM

I have attended site(213 Morgan street Merewether) on the 16/05/2024 to inspect and perform electrical works, In my opinion as a qualified electrical contractor, all work is safe and to code. Any questions, Stephen has my number.

Kind regards, Robert Lewis
Electrical contractor licence number 167566c



IN THE FEDERAL CIRCUIT AND
FAMILY COURT OF AUSTRALIA
AT NEWCASTLE

No. NCC3896/2023

IN THE MARRIAGE OF

STEPHEN CHRISTOPHER COOKE

Applicant

and

HEATHER ANNE COOKE

Respondent

ANNEXURE SHEET

This is the document referred to as Annexure **HC4** in the affidavit of **HEATHER ANNE COOKE** affirmed at Adamstown on 31 May 2024 before me Tayleh Soames


.....
Tayleh Soames

Solicitor
Qualification





Our Ref: ALR:ALR:13629
Your Ref: Matthew Shepherd

23 May 2024

Mr Shepherd
Ramsden Family Law
6 15 Castlereagh Street
Sydney NSW 2000

By Email only: mshepherd@ramsdenlaw.com.au

Dear Colleagues

**Re: Cooke & Cooke
Property Division**

We refer to your letter dated 20 May 2024.

Kent Conveyancing

Your client does not need to agree to the appointment of Kent Conveyancing. Kent Conveyancing was appointed pursuant to the Orders dated 11 April 2024.

Your client was required to provide instructions to Kent Conveyancing to prepare a Contract for Sale within two (2) weeks of the appointment of the real estate agent. Your client has failed to do so and is in continuing breach of the Orders.

Would you please arrange for your client to provide his instructions to Kent Conveyancing forthwith and by 5:00pm on Friday, 24 May 2024, and provide us with confirmation of same, failing which we are instructed to correspond with Chambers to relist this matter.

Robinson Property

Robinson Property has been appointed agent on the sale of 1/213 Morgan Street, Merewether pursuant to the Orders dated 11 April 2024. Your client chose Robinson Property from a list of three (3) agents proposed by our client. Your client had ample time to make enquiries of the agents proposed prior to his election and your client's election is now binding.

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T 1300 760 773
E hello@delaneyroberts.com.au

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317 Hunter Street, Newcastle NSW 2300
274 Brunker Road, Adamstown NSW 2289
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In any case, any suggestion that Mr Flook lacks impartiality due to his purportedly being a patient of Dr Bhagwande is refuted. Mr Flook is very well-known in the Newcastle area and no doubt has innumerable connections. Such relationships are no basis for a suggestion that Mr Flook lacks impartiality, and we believe he would be most concerned to hear of your assertions.

As we understand, it is standard practice for a real estate agent to take photos of a property when making preparations to go to market and is particularly necessary where our client does not have access to the jointly-owned property and was entitled to be made aware of the state of the property prior to being listed. The house was clearly in a state of disarray and did need attention. If your client feels that Mr Flook has been critical of the manner in which he chooses to live, this is a matter for your client.

Regardless of Mr Flook's connections or your client's feelings about him, Mr Flook has been appointed pursuant to the Orders. Both parties have now signed an Agency Agreement with Robinson Property. Mr Flook is not conflicted in the discharge of his role as he is in pursuit of the same outcome for each of the parties - to obtain the best price reasonably obtainable for the Morgan Street Property. Any further resistance in relation to Mr Flook's appointment or his marketing of the property will be strenuously opposed by our client with costs.

Our client has no objection to the agent to be jointly instructed to send all email communications to both parties simultaneously. Further, our client agrees that neither party take steps to arrange tradespeople without clear agreement as to how costs are to be borne (subject to works being performed unilaterally by one party provided the full cost of such works are borne by that party).

Repairs to 1/213 Morgan Street, Merewether

We are instructed that, despite your client's efforts to clean up the property, interior paintings works were necessary to rectify your client's damage to the entry hallway from removal of a feature wall light, and the ceilings from the removal of wiring to an Alexa. Such damage did not exist at the time our client vacated the property and cannot be considered "*fair wear and tear*" – the damage was clearly caused by your client's removal of fixtures that were intact on our client's departure and could have remained in place until the sale of the property. We attach a photo of the entry hallway taken on 2 December 2023 at around the time our client vacated the property.

We attach a quote dated 3 May 2024 and an invoice dated 18 May 2024 from Caslick Coatings. You will note that the sum of \$2,650.00 has been charged for the painting works required to rectify the damage caused by your client. This sum remains due and owing and is wholly your client's responsibility given the Orders dated 11 April, the nature and extent of the damage and the repair works required. Please have your client attend to payment by the due date, 24 May 2024. We also attach an invoice dated 21 May 2024 from Armstrong Property Maintenance in the sum of \$210.00 for necessary works that had not been attended to by your client. Please arrange for your client to attend to payment by the due date.

Our client has part-paid the Caslick Coatings invoice for the exterior painting works in the sum of \$550.00. Our client requires that this amount is reimbursed to her from the settlement proceeds prior to distribution.



Valuation of 703/1 Como Crescent, Southport

We attach a joint letter to SLR Valuations executed by the writer. Would you please countersign and forward to SLR Valuations as soon as possible and within seven (7) days?

Westpac home loan ending #6802

We are instructed that the parties have been notified that the Westpac home loan ending #6802 secured over 1/213 Morgan Street, Merewether will reach the end of a fixed interest period on 10 June 2024. The loan is currently fixed at an interest rate of 1.8% pa and, from 10 June 2024, will move to a variable rate of 6.2%. This will result in an increase to the monthly home loan repayments currently entirely funded by our client in the sum of approximately \$2,000. Such an increase was not contemplated at the time of the Orders dated 11 April 2024 and our client is not at all able to fund such increase.

Our client proposes that the parties jointly approach the bank to arrange that, pending settlement of the sale, the loan repayments are put on hold. Please advise us as to whether your client is agreeable to this course by 5:00pm on Friday, 31 May 2024, failing which we are instructed to file an Application in a Case seeking further interim orders.

We look forward to hearing from you:

1. Providing confirmation that your client has provided instructions to Kent Conveyancing by 5:00pm on 24 May 2024,
2. Providing confirmation that your client has attended to payment of the balance of \$2,650 in respect of the Caslick Coatings invoice dated 18 May 2024 and \$210.00 in respect of the Armstrong Property Maintenance invoice dated 21 May 2024,
3. Providing confirmation that the joint letter has been forwarded to SLR Valuations within seven (7) days, and
4. Providing confirmation that your client will jointly approach Westpac to put the Westpac home loan #6802 on hold by 5:00pm on Friday, 31 May 2024.

Yours faithfully

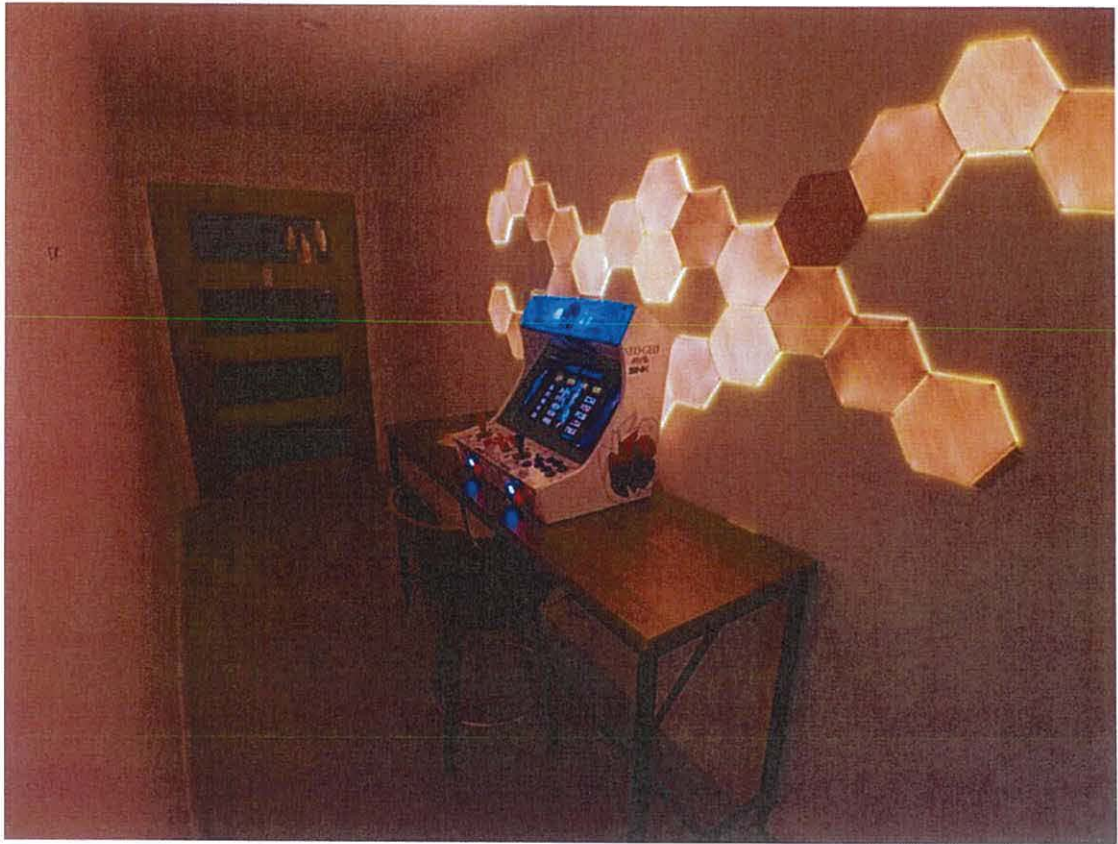
Delaney Roberts Family Lawyers



Anna Roberts
Director, Solicitor & Family Dispute Resolution Practitioner

email: aroberts@delaneyroberts.com.au
phone: 02 4952 3901





Armstrong Property Maintenance
po box 42
jesmond NSW 2299
0409 609 405
info@armstrongpropertymaintenance.com.au
ABN 66478772832



Tax Invoice

INVOICE TO
Mike Flook
Robinson
77 Glebe Road
The Junction NSW 2291

INVOICE NO. 3425
DATE 21/05/2024
DUE DATE 20/06/2024
TERMS Net 30

DATE	DESCRIPTION	AMOUNT
	. silicone side of vanity	210.00
	. grout small hole to floor	
	. other repairs no longer required	

1/213 Morgan Street Merewether

INCLUDES GST TOTAL 19.09
TOTAL 210.00
BALANCE DUE **A\$210.00**

Pay by cheque made out to Armstrong property Maintenance to po box 42 Jesmond N.S.W
Direct Deposit to St George account name Armstrong Property Maintenance BSB 112 3879
Account 443640891

The seal of the Federal Circuit and Family Court of Australia is a circular emblem. It features a central shield with a kangaroo and an emu, flanked by the words 'AUSTRALIA' and 'FEDERAL CIRCUIT AND FAMILY COURT OF AUSTRALIA'. The number '55' is printed in the bottom right corner of the seal.
55

CASLICK COATINGS PTY LTD
8 Geordie Street
Killingworth NSW 2278
email: admin@caslickcoatings.com.au
Phone: 02 4953 2235
Fax: 02 4953 2233

Tax Invoice

ABN 56 131 174 699
ACN 131 174 699

Tax Date	Invoice No
18/05/2024	CC2209

Invoice To:
Robinson Property 77 Glebe Road The Junction NSW 2291

P.O. Number	Terms	Due Date
	7 DAYS	25/05/2024

Quantity	Item	Description	Price	TAX	TAX A...	Amount
1	Painting	RE: 1/213 MORGAN STREET, MEREWETHER NSW 2291 ATTENTION: Mike Flook Account rendered for the completion of external and internal painting work as per quoted 3 May 2024.	3,200.00	GST	290.91	3,200.00

Cheques payable to Caslick Coatings Pty Ltd Direct Payment Details BSB 082864 A/C 820985722	Subtotal	\$2,909.09
	Tax	\$290.91
	TOTAL	\$3,200.00



Caslick Coatings

Painting Specialists

ABN 56131 174 699
Contractor Licence No. 245572C
8 Geordie Street
Killingworth
Phone (02) 49 532235
Email: admin@caslickcoatings.com.au

3 May 2024

Robinson Property
77 Glebe Road
The Junction NSW 2291

Attention: Mike Flook
E: mike@robinsonre.com.au

Dear Mike

RE: 1/213 MORGAN STREET, MEREWETHER NSW 2291

Caslick Coatings are pleased to submit a quote for internal and external painting work as per discussions on the abovementioned property.

Work Details - Interior

- All preparation work required to do the job, including patching walls in entry and ceiling where necessary.
- Paint entry walls with Dulux Wash and Wear.
- Touch up patches on ceiling with best matching ceiling paint.

Our price for the interior work is \$2,650.00 which includes labour, materials and GST.

Work Details – Exterior

- All preparation work required to do the job, including preparation work to rusty patches on colour bond flashing on roof.
- Apply one (1) coat of oil undercoat and two (2) coats of Dulux Weathershield.

Our price for the exterior work is \$550.00 which includes labour, materials and GST.

Our price for the work in total is \$3,200.00 which includes labour, materials and GST.

This quote is valid for three (3) months from date of receipt.

Thank you for the opportunity for allowing us to quote on this matter.



Should you require any further information please do not hesitate to contact Rick Caslick on 0406 410 131.

Kind regards
Angela Hudson
For and on behalf of Caslick Coatings Pty Ltd
Angela Hudson



IN THE FEDERAL CIRCUIT AND
FAMILY COURT OF AUSTRALIA
AT NEWCASTLE

No. NCC3896/2023

IN THE MARRIAGE OF

STEPHEN CHRISTOPHER COOKE

Applicant

and

HEATHER ANNE COOKE

Respondent

ANNEXURE SHEET

This is the document referred to as Annexure **HC5** in the affidavit of **HEATHER ANNE COOKE** affirmed at Adamstown on 31 May 2024 before me Tayleh Soames



.....
Tayleh Soames

Solicitor
Qualification





Our Ref: ALR:TS:13629
Your Ref: Matthew Shepherd

29 May 2024

Mr Shepherd
Ramsden Family Law
6 15 Castlereagh Street
Sydney NSW 2000

By Email only: mshepherd@ramsdenlaw.com.au

Dear Colleagues

**Re: Cooke & Cooke
Property Division**

We refer to our email exchange of today's date. We are instructed as follows:

Westpac Home Loans

Our client is unable to maintain the costs of all three home loans as well as \$1,200.00 per week Spousal Maintenance to your client. As the home will be listed for sale shortly, our client proposes that the parties jointly approach the bank to arrange that, pending settlement of the sale, all **three (3)** loan repayments are put on hold.

Repairs to 1/213 Morgan Street, Merewether

The works proposed by Salt

Our client does not consent to the outside building works. As the title is Strata, any outside proposed building works require a special body corporate meeting where three quotes are proposed and one selected. Our client was informed by the Agent that this work would take 6-8 weeks to be complete. These timeframes are not feasible.

Our client consents to the staging of the front balcony and adjacent room and the payment terms proposed in your email.

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Professional clean & photographs

The Agent has suggested multiple times that the property be professionally cleaned. We have been informed that the Agent arranged for cleaners to attend the property on 28 May 2024, but your client cancelled the appointment, citing satisfaction with the current cleanliness of the property.

Our client maintains that the cleaner should be reinstated, in accordance with the Agent's recommendation, with your client bearing the sole costs of that expense.

Our client proposes that the property is cleaned and photographed by Tuesday 4 June 2024 to enable the home to be listed for sale by 5 June 2024.

Outstanding invoices

As outlined in our letter of 23 May 2024, our client maintains that the invoices from Caslick Coatings and Armstrong Property Maintenance are to be paid by your client. Please provide confirmation that your client has paid those invoices.

Our client also seeks confirmation that the part-paid invoice from Caslick Coatings for the exterior painting in the sum of \$550.00 will be reimbursed to her on settlement of the property.

Valuation of the Southport Property

We look forward to receiving confirmation that the joint letter has been forwarded to SLR Valuations.

We look forward to hearing from you:

1. Providing confirmation that your client has attended to payment of the balance of \$2,650 in respect of the Caslick Coatings invoice dated 18 May 2024 and \$210.00 in respect of the Armstrong Property Maintenance invoice dated 21 May 2024.
2. Providing confirmation that the \$550.00 part-paid invoice to Caslick Coatings will be reimbursed to our client on settlement.
3. Providing confirmation that the joint letter has been forwarded to SLR Valuations
4. Providing confirmation that your client will jointly approach Westpac to put the three Westpac home loans on hold.
5. Providing confirmation that your client agrees to having the property cleaned and photographed by 4 June 2024.



If we do not receive a response from you by **10am on 30 May 2024**, we have instructions to proceed with filing our client's, already drafted, Application in a Proceeding seeking further Interim Orders, including a reduction in our client's maintenance payment to your client.

Yours faithfully
Delaney Roberts Family Lawyers



Tayleh Soames
Associate Solicitor

email: tsoames@delaneyroberts.com.au
phone: 02 4952 3901

Encl.

